

Date Of Decision: 30.9.2024 vs State Of Himachal Pradesh And Anr on 30 September, 2024

Author: Sandeep Sharma

Bench: Sandeep Sharma

2024:HHC:9510

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

CrMMO No. 910 of 2024

Date of Decision: 30.9.2024

Divyanshu Awasthi and Ors.

.....Petitioners

Versus

State of Himachal Pradesh and Anr.

.....Respondents

Coram

Hon'ble Mr. Justice Sandeep Sharma, Judge.

Whether approved for reporting?

For the Petitioners: Mr. Ganesh Barowalia, Advocate.

For the Respondents: Mr. Rajan Kahol, Mr. Vishal Panwar and Mr. B.C. Verma, Additional Advocates General with Mr. Ravi Chauhan, Deputy Advocate General, for the State.

Mr. Gambhir Singh Chauhan, Advocate, for respondent No.2.

Sandeep Sharma, J. (Oral)

By way of instant petition, prayer has been made on behalf of the petitioner for quashing of FIR No. 156/22, dated 17.9.2022, under Sections 498-A, 506 and 34 of IPC, registered with Police Station Joginder Nagar, District Mandi, Himachal Pradesh as well as consequent proceedings, if any, pending before the court below, on the basis of compromise/amicable settlement arrived inter-se parties.

2 2024:HHC:9510

2. Precisely, the case of the petitioners, as emerges from the pleadings is that the FIR sought to be quashed in the instant proceedings came to be lodged at the behest of respondent No.2 (hereinafter, 'complainant'), who alleged that her marriage was solemnized with petitioner No.1 on 19.4.2022 as per Hindu Rites and Customs, but from day one of her marriage, she was maltreated on account of

bringing less dowry. She alleged that repeatedly, she was taunted for not bringing adequate dowry and for making improper arrangements for Baraat. On account of continuous harassment, complainant was compelled to leave her matrimonial house on 30th August and since then, she has been living with her parents. In the aforesaid background, FIR sought to be quashed came to be instituted against the petitioners, who happen to be husband and parents in law of respondent No.2.

3. Though after completion of investigation, police has presented challan in the competent court of law, but before same could be taken to its logical end, parties entered into compromise, whereby they have resolved to settle their dispute amicably inter-se them, whereby respondent No.2 and petitioner No.1 have decided to get their marriage dissolved by way of mutual consent and in that regard, they have also filed petition under Section 13 (B) of the Hindu Marriage Act in the competent court of law, 3 2024:HHC:9510 praying therein for dissolution of marriage by way of mutual consent. Statement of first motion has been already recorded. As per agreed terms, sum of Rs. 3.5 lakh has been already paid to the respondent-complainant in the first motion and remaining amount of Rs. 3.5 lakh shall be paid at the time of statement of second motion. Petitioners have agreed for releasing Istridhan i.e. ornaments lying with them. In the aforesaid backdrop, petitioners have approached this Court in the instant proceedings for quashing of FIR.

4. Pursuant to order dated 17.9.2024, respondent-State has filed status report, wherein factum of filing of joint petition under Section 13 B of the Hindu Marriage Act stands duly acknowledged. Respondent- complainant has also come present and is being represented by Mr. Gambhir Singh Chauhan, Advocate. She states on oath that she of her own volition has entered into compromise, whereby both the parties have resolved to settle their dispute amicably inter-se them. She states that since after lodging of FIR sought to be quashed, parties have arrived at an amicable settlement, she and her husband, have already filed petition under Section 13 B of the Hindu Marriage Act for dissolution of marriage by way of mutual consent. She states that otherwise also, FIR is result of misunderstanding, coupled with the fact that petitioners have apologized 4 2024:HHC:9510 for their behaviour, she shall have no objection in case FIR as well as consequent proceedings are quashed and petitioners are acquitted of the charges framed against them. While admitting contents of the compromise to be correct, she also admits her signatures on the same.

5. Having heard the statement made on oath by respondent No.2- complainant, Mr. B.C. Verma, learned Additional Advocate General states that no fruitful purpose will be served in case FIR as well as consequent proceedings are allowed to continue against the petitioners. He further states that otherwise also, chances of conviction of the petitioners are remote and bleak, on account of statement made by complainant, as such, he shall have no objection in case prayer made on behalf of the petitioners is accepted and FIR in question alongwith consequential proceedings is quashed and set aside and petitioners are acquitted.

6. The question which now needs consideration is whether FIR in question can be ordered to be quashed when Hon'ble Apex Court in Narinder Singh and others versus State of Punjab and another (2014)6 SCC 466 has specifically held that power under S. 482 CrPC is not to be exercised in the cases which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society.

5 2024:HHC:9510

7. At this stage, it would be relevant to take note of the judgment passed by Hon'ble Apex Court in Narinder Singh (supra), whereby the Hon'ble Apex Court has formulated guidelines for accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the criminal proceedings. Perusal of judgment referred to above clearly depicts that in para 29.1, Hon'ble Apex Court has returned the findings that power conferred under Section 482 of the Code is to be distinguished from the power which lies in the Court to compound the offences under Section 320 of the Code. No doubt, under Section 482 of the Code, the High Court has inherent power to quash criminal proceedings even in those cases which are not compoundable and where the parties have settled the matter between themselves, however, this power is to be exercised sparingly and with great caution. In para Nos. 29 to 29.7 of the judgment Hon'ble Apex Court has laid down certain parameters to be followed, while compounding offences.

8. Careful perusal of para 29.3 of the judgment suggests that such a power is not to be exercised in the cases which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Apart from this, offences committed under special statute like the 6 2024:HHC:9510 Prevention of Corruption Act or the offences committed by Public Servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender. On the other hand, those criminal cases having overwhelmingly and predominantly civil character, particularly arising out of commercial transactions or arising out of matrimonial relationship or family disputes may be quashed when the parties have resolved their entire disputes among themselves.

9. The Hon'ble Apex Court in Gian Singh v. State of Punjab and anr. (2012) 10 SCC 303 has held that power of the High Court in quashing of the criminal proceedings or FIR or complaint in exercise of its inherent power is distinct and different from the power of a Criminal Court for compounding offences under Section 320 Cr.PC. Even in the judgment passed in Narinder Singh's case, the Hon'ble Apex Court has held that while exercising inherent power of quashment under Section 482 Cr.PC the Court must have due regard to the nature and gravity of the crime and its social impact and it cautioned the Courts not to exercise the power for quashing proceedings in heinous and serious offences of mental depravity, murder, rape, dacoity etc. However subsequently, the Hon'ble Apex Court in Dimpey Gujral and Ors. vs. Union Territory through Administrator, UT, Chandigarh and Ors. (2013) 11 SCC 497 has further reiterated that 7 2024:HHC:9510 continuation of criminal proceedings would tantamount to abuse of process of law because the alleged offences are not heinous offences showing extreme depravity nor are they against the society. Hon'ble Apex Court further observed that when offences of a personal nature, burying them would bring about peace and amity between the two sides.

10. Hon'ble Apex Court in its judgment dated 4th October, 2017, titled as Parbatbhai Aahir @ Parbatbhai Bhimsinhbhai Karmur and others versus State of Gujarat and Another, passed in Criminal Appeal No.1723 of 2017 arising out of SLP(Crl) No.9549 of 2016, reiterated the principles/parameters laid down in Narinder Singh's case supra for accepting the settlement and quashing the proceedings.

11. In the case at hand also, offences alleged to have been committed by the petitioners do not involve offences of moral turpitude or any grave/heinous crime, rather same are petty offences, as such, this Court deems it appropriate to quash the FIR as well as consequential proceedings thereto, especially keeping in view the fact that the petitioners and the complainant have compromised the matter inter-se them, in which case, possibility of conviction of the petitioners is remote/bleak and no fruitful purpose would be served in continuing with the criminal proceedings.

8 2024:HHC:9510

12. Since parties have compromised the matter with each other and respondent No.2-complainant, at whose instance, FIR sought to be quashed in the instant proceedings came to be lodged, is no more interested in pursuing the criminal prosecution of the petitioners, this court sees no impediment in accepting the prayer made on behalf of the petitioners for quashing of the FIR alongwith all consequential proceedings.

13. Consequently, in view of the aforesaid discussion as well as law laid down by the Hon'ble Apex Court (supra), FIR No. 156/22, dated 17.9.2022, under Sections 498-A, 506 and 34 of IPC, registered with Police Station Joginder Nagar, District Mandi, Himachal Pradesh as well as consequent proceedings, are quashed and set aside. Accused are acquitted of the charges framed against them. The petition stands disposed of in the aforesaid terms, alongwith all pending applications.

14. The parties are permitted to produce copy of this order downloaded from the High Court website and the trial Court shall not insist for certified copy of the order, however, it may verify the order from the High Court website or otherwise.

September 30, 2024
(manjit)

(Sandeep Sharma),
Judge